

1 _____ BILL NO. _____

2 INTRODUCED BY _____
3 (Primary Sponsor)

4 A BILL FOR AN ACT ENTITLED: "AN ACT ESTABLISHING THE MONTANA HUNTERS' AND ANGLERS'
5 COMMUNITY FUND AND GRANT PROGRAM; PROVIDING LEGISLATIVE FINDINGS; ESTABLISHING A
6 DONATION MECHANISM, A GRANT REVIEW BOARD, AND A STATE SPECIAL REVENUE ACCOUNT;
7 AUTHORIZING A STATUTORY APPROPRIATION OF THE REVENUE IN THE ACCOUNT; PROVIDING
8 RULEMAKING AUTHORITY; AMENDING SECTION 17-7-502, MCA; AND PROVIDING AN EFFECTIVE DATE
9 AND A TERMINATION DATE."

10

11 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

12

13 NEW SECTION. **Section 1. Montana hunters' and anglers' community fund -- findings -- grants**

14 **-- board -- rulemaking.** (1) The legislature finds that resident and nonresident hunters and anglers depend on
15 rural Montana for hunting and fishing opportunities, an array of community services, and the goodwill of private
16 landowners and small communities. In recognition that hunters and anglers want to strengthen and support
17 these rural communities, there is established the Montana hunters' and anglers' community fund, to which
18 persons may donate \$1 or more above the price of a wildlife conservation license purchased pursuant to 87-2-
19 202 or the price of a combination license that includes a conservation license.

20 (2) By September 1 and March 1 of each year, the department of fish, wildlife, and parks shall
21 transfer all funds collected pursuant to subsection (1) into the account established in [section 2].

22 (3) The Montana hunters' and anglers' community fund is administered by the department of
23 commerce, pursuant to this section, as a grant program. The department of commerce shall provide
24 educational materials about the fund on its website and through other avenues, as appropriate, and may solicit
25 contributions from any source, including but not limited to individuals, partnerships, corporations, associations,
26 and public organizations of any character.

27 (4) (a) Entities eligible to apply for a grant pursuant to this section must be from a community with
28 a population of fewer than 7,500 persons according to the most recent census estimate and be a local or tribal

1 government, school district, student club, or school group, or a community, nongovernmental, religious, or
2 nonprofit organization seeking financing for an activity, including but not limited to:

3 (i) a community or school improvement project;

4 (ii) a community service project;

5 (iii) a community service program, including but not limited to a food bank and nutrition program;

6 and

7 (iv) a student activity, including but not limited to sports and arts programs.

8 (b) Grants may not be used for costs related to marketing, advertising, advocacy, or political
9 activities.

10 (c) (i) Grant funds may not be awarded to an entity that has filed a lawsuit regarding any legal
11 matter in a court of law in the state. If an entity files a lawsuit regarding any legal matter in a court of law in the
12 state after receiving grant funds pursuant to this section, all grant funds previously awarded must be returned.

13 (ii) To receive funds under this section, an entity shall sign a form designated by the department of
14 commerce to clarify that the entity is aware of and is in compliance with the requirements of subsection (4)(c)(i).

15 (5) Grants from the money deposited each license year in the Montana hunters' and anglers'
16 community fund account established in [section 2] may be awarded in two ways:

17 (a) large grants of up to \$20,000 that may be expended over multiple years; and

18 (b) small grants of up to \$2,000.

19 (6) (a) When awarding grants, the department of commerce shall consider the recommendations
20 of the Montana hunters' and anglers' community fund board, which consists of seven members of the general
21 public who, subject to the provisions of subsection (6)(b), are appointed as follows:

22 (i) one member appointed by the speaker of the house;

23 (ii) one member appointed by the house minority leader;

24 (iii) one member appointed by the president of the senate;

25 (iv) one member appointed by the senate minority leader; and

26 (v) three members appointed by the governor.

27 (b) To be eligible to be appointed to the board, a person must be a hunter, angler, local
28 government official, landowner, tribal member, or community advocate. The officials making the appointments

1 shall coordinate with one another to ensure they appoint members from a variety of backgrounds and
2 geographic areas.

3 (c) The director of the department of commerce or the director's designee shall serve as a
4 nonvoting ex officio member of the board.

5 (7) In consultation with the board, the department of commerce:

6 (a) may adopt rules to implement this section; and

7 (b) shall develop a plan to promote and solicit contributions to the Montana hunters' and anglers'
8 community fund.

9

10 NEW SECTION. **Section 2. Montana hunters' and anglers' community fund account.** (1) There is
11 a Montana hunters' and anglers' community fund account in the state special revenue fund established by 17-2-
12 102. The account is statutorily appropriated, as provided in 17-7-502, to the department of commerce. Money in
13 the account must be used by the department of commerce as provided in [section 1].

14 (2) Money transferred from any lawful source, including but not limited to donations collected
15 pursuant to [section 1], and gifts, donations, grants, securities, or other assets, public or private, must be
16 deposited in the account.

17 (3) Each year, the department of commerce may use up to 10% of the money in the account for
18 administrative costs.

19 (4) At the end of each fiscal year, any unreserved money in the account, including any interest and
20 earnings, must remain in the account.

21

22 **Section 3.** Section 17-7-502, MCA, is amended to read:

23 **"17-7-502. Statutory appropriations -- definition -- requisites for validity.** (1) A statutory
24 appropriation is an appropriation made by permanent law that authorizes spending by a state agency without
25 the need for a biennial legislative appropriation or budget amendment.

26 (2) Except as provided in subsection (4), to be effective, a statutory appropriation must comply with
27 both of the following provisions:

28 (a) The law containing the statutory authority must be listed in subsection (3).

(b) The law or portion of the law making a statutory appropriation must specifically state that a statutory appropriation is made as provided in this section.

(3) The following laws are the only laws containing statutory appropriations: 2-17-105; 5-11-120; 5-11-407; 5-13-403; 5-13-404; 7-4-2502; 7-4-2924; 7-32-236; 10-1-108; 10-1-1202; 10-1-1303; 10-2-603; 10-2-807; 10-3-203; 10-3-310; 10-3-312; 10-3-314; 10-3-316; 10-3-802; 10-3-1304; 10-4-304; 10-4-310; 15-1-121; 15-1-142; 15-1-143; 15-1-218; 15-1-2302; 15-31-165; 15-31-1004; 15-31-1005; 15-35-108; 15-36-332; 15-37-117; 15-39-110; 15-65-121; 15-70-128; 15-70-131; 15-70-132; 15-70-433; 16-11-119; 16-11-509; 17-3-106; 17-3-212; 17-3-222; 17-3-241; 17-6-101; 17-6-214; 17-7-133; 17-7-215; 18-11-112; 19-3-319; 19-3-320; 19-6-410; 19-9-702; 19-13-604; 19-17-301; 19-18-512; 19-19-305; 19-19-506; 19-20-604; 19-20-607; 19-21-203; 20-3-369; 20-7-1709; 20-8-107; 20-9-250; 20-9-534; 20-9-622; [20-15-328]; 20-26-617; 20-26-1503; 22-1-327; 22-3-116; 22-3-117; [22-3-1004]; 23-4-105; 23-5-306; 23-5-409; 23-5-612; 23-7-301; 23-7-402; 30-10-1004; 37-43-204; 37-50-209; 37-54-113; 39-71-503; 41-5-2011; 42-2-105; 44-4-1101; 44-4-1506; 44-12-213; 44-13-102; 50-1-115; 53-1-109; 53-6-148; 53-9-113; 53-24-108; 53-24-206; 60-5-530; 60-11-115; 61-3-321; 61-3-415; 67-1-309; 69-3-870; 69-4-527; 75-1-1101; 75-5-1108; 75-6-214; 75-11-313; 75-26-308; 76-13-150; 76-13-151; 76-13-417; 76-17-103; 77-1-108; 77-2-362; 80-2-222; 80-4-416; 80-11-518; 80-11-1006; 81-1-112; 81-1-113; 81-2-203; 81-7-106; 81-7-123; 81-10-103; 82-11-161; 85-20-1504; 85-20-1505; [85-25-102]; 87-1-603; [section 2]; 87-5-909; 90-1-115; 90-1-205; 90-1-504; 90-6-331; and 90-9-306.

(4) There is a statutory appropriation to pay the principal, interest, premiums, and any costs or fees associated with issuing, paying, securing, redeeming, or defeasing all bonds, notes, or other obligations, as due in the ordinary course or when earlier called for redemption or defeased, that have been authorized and issued pursuant to the laws of Montana. Agencies that have entered into agreements authorized by the laws of Montana to pay the state treasurer, for deposit in accordance with 17-2-101 through 17-2-107, as determined by the state treasurer, an amount sufficient to pay the principal and interest as due on the bonds or notes have statutory appropriation authority for the payments. (In subsection (3): pursuant to sec. 10, Ch. 360, L. 1999, the inclusion of 19-20-604 terminates contingently when the amortization period for the teachers' retirement system's unfunded liability is 10 years or less; pursuant to sec. 73, Ch. 44, L. 2007, the inclusion of 19-6-410 terminates contingently upon the death of the last recipient eligible under 19-6-709(2) for the supplemental benefit provided by 19-6-709; pursuant to sec. 5, Ch. 383, L. 2015, the inclusion of 85-25-102 is effective on

1 occurrence of contingency; pursuant to sec. 6, Ch. 423, L. 2015, the inclusion of 22-3-116 and 22-3-117
2 terminates June 30, 2025; pursuant to sec. 4, Ch. 122, L. 2017, the inclusion of 10-3-1304 terminates
3 September 30, 2025; pursuant to sec. 1, Ch. 213, L. 2017, the inclusion of 90-6-331 terminates June 30, 2027;
4 pursuant to sec. 10, Ch. 374, L. 2017, the inclusion of 76-17-103 terminates June 30, 2027; pursuant to secs.
5 11, 12, and 14, Ch. 343, L. 2019, the inclusion of 15-35-108 terminates June 30, 2027; pursuant to sec. 1, Ch.
6 408, L. 2019, the inclusion of 17-7-215 terminates June 30, 2029; pursuant to secs. 1, 2, 3, Ch. 139, L. 2021,
7 the inclusion of 53-9-113 terminates June 30, 2027; pursuant to sec. 8, Ch. 200, L. 2021, the inclusion of 10-4-
8 310 terminates July 1, 2031; pursuant to secs. 3, 4, Ch. 404, L. 2021, the inclusion of 30-10-1004 terminates
9 June 30, 2027; pursuant to sec. 5, Ch. 548, L. 2021, the inclusion of 50-1-115 terminates June 30, 2025;
10 pursuant to secs. 5 and 12, Ch. 563, L. 2021, the inclusion of 22-3-1004 is effective July 1, 2027; pursuant to
11 sec. 1, Ch. 20, L. 2023, sec. 2, Ch. 20, L. 2023, and sec. 3, Ch. 20, L. 2023, the inclusion of 81-1-112, 81-1-
12 113, and 81-7-106 terminates June 30, 2029; pursuant to sec. 9, Ch. 44, L. 2023, the inclusion of 15-1-142
13 terminates December 31, 2025; pursuant to sec. 10, Ch. 47, L. 2023, the inclusion of 15-1-2302 terminates
14 June 30, 2025; pursuant to sec. 2, Ch. 374, L. 2023, the inclusion of 10-3-802 terminates June 30, 2031;
15 pursuant to sec. 12, Ch. 558, L. 2023, the inclusion of 20-9-250 terminates December 31, 2029; pursuant to
16 sec. 4, Ch. 621, L. 2023, the inclusion of 22-1-327 terminates July 1, 2029; pursuant to sec. 24, Ch. 722, L.
17 2023, the inclusion of 17-7-133 terminates June 30, 2027; pursuant to sec. 10, Ch. 758, L. 2023, the inclusion
18 of 44-4-1506 terminates June 30, 2027; and pursuant to sec. 10, Ch. 764, L. 2023, the inclusion of 15-1-143
19 terminates December 31, 2025.)"

20
21 **NEW SECTION. Section 4. Codification instruction.** [Sections 1 and 2] are intended to be codified
22 as an integral part of Title 87, chapter 1, part 6, and the provisions of Title 87, chapter 1, part 6, apply to
23 [sections 1 and 2].

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25 **NEW SECTION. Section 5. Effective date.** [This act] is effective July 1, 2025.

26
27 **NEW SECTION. Section 6. Termination.** [This act] terminates June 30, 2029.

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